of the present Convention, on:

.1 how the Regional Reception Facilities Plan takes into account the guidelines developed by the Organization;41

40 Refer to the 2012 Guidelines for the development of a Regional Reception Facilities Plan (resolution MEPC.221(63), as amended by resolution MEPC.363(79)).

41 Refer to the 2012 Guidelines for the development of a Regional Reception Facilities Plan (resolution MEPC.221(63)), as amended by resolution MEPC.363(79).

RESOLUTION MEPC.403(83) (adopted on 11 April 2025)

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(resolution MEPC.221(63)), as amended by resolution MEPC.363(79).

RESOLUTION MEPC.403(83) (adopted on 11 April 2025)

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.2 particulars of the identified Regional Ships Waste Reception Centres taking into account the guidelines developed by the Organization;42 and

.3 particulars of those ports with only limited facilities.

4 If a particular port or terminal of a Party is, taking into account the guidelines developed by the Organization ,43 remotely located from, or lacking in, the industrial infrastructure necessary to manage and process those substances referred to in paragraph 1 of this regulation and therefore cannot accept such substances, then the Party shall inform the Organization of any such port or terminal so that this information may be circulated to all Parties and Member States of the Organization for their information and any appropriate action. Each Party that has provided the Organization with such information shall also noti fy the

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and Member States of the Organization for their information and any appropriate action. Each Party that has provided the Organization with such information shall also noti fy the

Organization of its ports and terminals where reception facilities are available to manage and process such substances.

5 Each Party shall notify the Organization for circulation to the Members of the Organization of all cases where the facilities provided under this regulation are unavailable or alleged to be inadequate.

Regulation 18

Fuel oil availability and quality

Fuel oil availability

1 Each Party shall take all reasonable steps to promote the availability of fuel oils that comply with this Annex and inform the Organization of the availability of compliant fuel oils in its ports and terminals.

2.1 If a ship is found by a Party not to be in compliance with the standards for compliant fuel oils set forth in this Annex, the competent authority of the Party is entitled to require the ship to:

.1 present a record of the actions taken to attempt to achieve compliance; and

.2 provide evidence that it attempted to purchase compliant fuel oil in

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ship to:

.1 present a record of the actions taken to attempt to achieve compliance; and

.2 provide evidence that it attempted to purchase compliant fuel oil in accordance with its voyage plan and, if it was not made available where planned, that attempts were made to locate alternative sources for such fuel oil and that despite best efforts to o btain compliant fuel oil, no such fuel oil was made available for purchase.

2.2 The ship should not be required to deviate from its intended voyage or to delay unduly the voyage in order to achieve compliance.

2.3 If a ship provides the information set forth in paragraph 2.1 of this regulation, a Party shall take into account all relevant circumstances and the evidence presented to determine the appropriate action to take, including not taking control measures.

2.4 A ship shall notify its Administration and the competent authority of the relevant port of destination when it cannot purchase compliant fuel oil.

42 Refer to the 2012 Guidelines for the development of a Regional Reception Facilities Plan (resolution MEPC.221(63)), as amended by resolution MEPC.363(79)).

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of destination when it cannot purchase compliant fuel oil.

42 Refer to the 2012 Guidelines for the development of a Regional Reception Facilities Plan (resolution MEPC.221(63)), as amended by resolution MEPC.363(79)).

43 Refer to the 2011 Guidelines for reception facilities under MARPOL Annex VI (resolution MEPC.199(62))

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